

**MISSILE DEFENSE AGENCY
SOLE-SOURCE JUSTIFICATION AND APPROVAL
– FAR Subpart 13.5**

1. Agencies and the Contracting Activity (FAR 6.303-2(b)(1)).

This justification and approval is for the Missile Defense Agency (MDA) Directorate of Engineering (DE). The contracting activity is the Engineering Program Office (MDA/DE) – Contracts (DACE). [REDACTED]

2. Nature and Description of the Action Being Approved (FAR 6.303-2(b)(2)).

This justification authorizes the award of a sole-source follow-on contract to purchase the Digital Engineering Library and Reference Tools through the Institute of Electrical and Electronic Engineers (IEEE) Digital Library. The Digital Engineering Library and Reference tools are considered a commercial service that are offered and sold competitively in the commercial marketplace for the general public, they were developed at private expense and are not unique to Federal Government use. The provider is essential to the Government's requirement for yearly digital subscription access to IEEE digital library tools. The IEEE website states that IEEE and its members inspire a global community to innovate for a better tomorrow through its more than 460,000 members in over 190 countries, and its highly cited publications, conferences, technology standards, and professional and educational activities.

Research Development Test & Evaluation (RDTE) funding will be used for this effort, which consists of a one year base with two, one year options as indicated below

Firm Fixed Price Contract (IEEE) Subscription	
Base-Year Period	April 26, 2025, to April 25, 2026
Option-Year One	April 26, 2026, to April 25, 2027
Option-Year Two	April 26, 2027, to April 25, 2028

3. Description of the Supplies and/or Services Required to Meet the Agency's Needs (including the estimated value) (FAR 6.303- 2(b)(3)).

MDA engineering experts require access to a digital online library of engineering topics for their daily usage. This library must have global industry standards in a broad range of industries which are referenced and required in MDA policy. The library must provide in-depth guides, Standard Operating Procedures, Military Standards, content search



capability, and Department of Defense (DoD) policy information. The digital library must include access to the maximum number of industry standards and contain the maximum number of online courses for continued education support. The digital library subscription must provide the MDA workforce, military and civilian, as well as certain contractors, up to 12,000 users, immediate, simultaneous, and unrestricted access to IEEE standards, journals, conferences, magazines, and eBooks, as well as access to online training courses on topics such as aerospace, robotics, emerging technologies, artificial intelligence, and tele- communications, as well as non-technical areas such as career development, leadership/ management, and transportation. The digital library suite should include self-paced courses, which, upon completion, will award Continuing Education Units. Additionally, the library must be easily accessible to the entire workforce via IP authentication, provide content search tools to search millions of full-text documents, journals, magazines, standards, and conference titles related to electrical engineering, electronics, and computer science for use in numerous agency activities, notably Research and Development. Additionally, the digital library must provide full-text access to eBook titles easily accessible via the digital library, including practical handbooks, introductory and advanced texts, reference works, and professional books.

Since this award is for a non-competitive follow-on action previously awarded on a non-competitive basis, the previous justification is attached. [REDACTED]
[REDACTED] to source the action as a sole source commercial action.

4. Statutory Authority Permitting Other Than Full and Open Competition (FAR 6.303-2(b)(4)).

The proposed action may be awarded on a limited source basis under the authority of 41 U.S.C. §427(c), which requires Agency Heads using simplified acquisition procedures to promote competition to the maximum extent practicable, and U.S.C. §1901 as implemented pursuant to FAR Subpart 13.5 – Simplified Procedures for Certain Commercial Products and Commercial Services. Only one source is capable of providing the services required because the services are unique or highly specialized.

IEEE has provided service to MDA for the past six years and has provided uniquely focused services to meet MDA's needs. IEEE has been a leader within the DoD for implementation of Federal Information with access to electronic standards, journals, conferences, online learning library and eBooks to which MDA has successfully used to remain current on cutting-edge content for all technical fields. Discontinuing services from IEEE would put

MDA assets at risk by compromising or causing the loss of access to the cutting edge-content necessary for mission success. Furthermore, without subscriptions in place to access these items immediately, they must be purchased individually at a much higher cost in an impeded timeline. The market research identifies that IEEE is the only source capable of providing this unique and highly specialized service at the level of quality required by MDA.

5. Demonstration of Contractor's Unique Qualifications or the Nature of the Acquisition Requires use if the Authority Cited (FAR 6.303-2(b)(5)).

The IEEE library provides powerful content search tools, and more than 6 million full-text documents, journals, magazines, standards, and conference titles related to electrical engineering, electronics, and computer science for use in numerous agency activities, notably Research and Development. The IEEE eLearning Library offers access to more than 450 online courses on topics such as aerospace, robotics, emerging technologies, artificial intelligence, and tele-communications, as well as non-technical areas such as career development, leadership/ management, and transportation. These are self-paced courses which, upon completion, award Continuing Education Units. The IEEE-Wiley eBooks Library provides full-text access to more than 1000 titles via IEEE Xplore. The eBooks Library focuses on the content areas that lead technologies. The collection includes practical handbooks, introductory and advanced texts, reference works, and professional books.

IEEE's Electronic Library are the tools best suited for the MDA workforce because these products meet the technical research and development requirements needed and incorporate the range of industry standards, which are referenced and required in MDA policy. With the required journals, conferences, magazines and training offered, MDA employees would gain access to standards that fully comply with guidance and follow best practices within MDA policy. In addition, the employees require access to other latest technical data/training to support Agency activities, making IEEE unlimited access vital to support the MDA. MDA uses IEEE standards for a specific purpose and cannot use any other standard to fulfill the need. There are third party vendors where one can purchase these standards, but ultimately, they come from IEEE. Additionally, the subscription is only offered through IEEE, and these other options do not provide the full breadth of information and catalogs and reference tools required.

6. Efforts to Obtain Competition (FAR 6.303-2(b)(6)).

Market research included calls and emails to known vendors who have access to the IEEE library gathered via historical knowledge, as well as via a google search. Moreover, in an effort to increase competition, a Combined Sources Sought/Notice of Intent to Sole Source titled "Digital Engineering Library and Reference Tools" was posted on SAM.Gov from 13 Mar 25 to 18 Mar 25 with no responses received.

7. **Determination of Fair and Reasonable Cost (FAR 6.303-2(b)(7)).** The current contractor will be required to submit a proposal for a one-year base effort and two (2) one-year options for the time frames specified in paragraph 3 above. The Government will use historical data to ensure that the Government is receiving a fair and reasonable price. This price analysis will include comparisons of previously proposed prices, to prices incurred under other similar existing contracts and/or task orders. MDA will conduct a thorough technical evaluation, and price analysis of the proposed costs to form the basis for the Contracting Officer's determination of fair and reasonable cost.
8. **Description of Market Research Conducted (FAR 6.303-2(b)(8)).** Market Research efforts were performed during September 2024 & March 2025. Market research was based on website searches, current knowledge, and sales contact information. An initial screen was performed to explore if vendors provided access to engineering technical standards. If the vendor met the initial screening, then their website was researched for access options by large organizations for a large set of standards. The vendors who met the detailed screening were contacted via phone or email to further explore if the vendor met the specific capabilities/criteria. As a result, four vendors were contacted directly, but only one could provide all the required capabilities. Considering the market research gathered, a special notice was also posted to SAM.gov with from 13 March 2025 to 18 March 2025 bearing zero responses. The American National Standards Institute can only provide access to IEEE standards with minimal simultaneous connectivity (10 users), and no access to journals, conferences, magazines, books or training. Accuris can only provide access to IEEE standards, with no access to journals, conferences, magazines, books or training. Only an IEEE Xplore Digital Library subscription can provide the MDA workforce immediate and unrestricted access to IEEE standards, journals, conferences, magazines, and eBooks, as well as access to hundreds of online training courses, easily accessible to the entire workforce via IP authentication.
9. **Any Other Facts Supporting the Use of Other Than Full and Open Competition (FAR 6.303-2(b)(9)).**

For context purposes, this action has been previously authorized as a commercial sole source procurement.

(1) Previous Award: HQ086722C0001

Previous J&A: J&A 22-007

Previous Summary & Explanation of Results:

(2) Previous Award: HQ014719C5000

Previous J&A: J&A 19-005

Previous Summary & Explanation of Results:

There has been no significant changes to the procurement requested.

The market research performed continues to corroborate that IEEE is the only contractor to meet the requirement and does not require user/location management. IEEE has direct workforce access available online; all current IEEE standards; IEEE journals, conferences, magazines, and books; full text content search capability across documents; unlimited concurrent users; seamless access for users; and IEEE online training courses. The IEEE subscription is integral to current DoD and MDA policy and activities. A sole source award to IEEE would provide the MDA engineering related workforce with immediate and unrestricted access to the IEEE tools noted above; expand technical training opportunities by the utilization of online courses; increase technical awareness; and reductions in time constraints of purchasing standards individually through a third-party source. Having sought competition to the maximum extent practicable through market research that concludes that IEEE is the only contractor to meet the requirement, under FAR Part 13.5 simplified acquisition procedures, a sole source award to IEEE is appropriate.

10. Listing of Sources.

A Combined Sources Sought/ Notice of Intent to Sole Source was posted on SAM.gov on 13 March 2025 to see if there were any other potential sources that could provide the requested requirement. No responses were received as a result of Combined Sources Sought/ Notice of Intent to Sole Source notice that closed on 18 March 2025.

11. Actions Taken to Remove Barriers to Competition (FAR 6.303-2(b)(11)).

MDA will continue to procure product subscriptions using competitive procurement procedures at every possible opportunity. MDA is constantly pursuing efforts to find other service providers who can provide comprehensive IEEE products by conducting continual market research to gauge the ever-evolving digital library research industry. In the event that new companies are formed and can provide sound, reasonable services and products, competition amongst these companies will be pursued.

12. Technical/Requirements Official Certification.

"I certify that this sole source justification under FAR 13.5 is made in good faith and that the supporting data and information are accurate and complete to the best of my knowledge and belief. I further certify that this request is not the result of a lack of advance planning."

[REDACTED]

13. Contracting Technical/Requirements Official Certification. "I certify that this sole-source justification under FAR 13.5 is made in good faith and that the supporting data and information are accurate and complete to the best of my knowledge and belief. I further certify that this request is not the result of a lack of advance planning."

[REDACTED]

14. Legal Counsel. "I have reviewed the justification and determined it to be legally sufficient."

[REDACTED]

15. Approval (FAR 6.304). "In accordance with FAR 6.304, the above sole-source justification under FAR 13.5 is hereby approved."

[REDACTED]

[REDACTED]